

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 67202 of 2023

Mehedi

.....Accused-Petitioner

-Versus-

The State

... Opposite Party

Mr. Mohammad Khorshed Alom, Advocate

.... For the accused-petitioner

Mr. Sujit Chatterjee, D.A.G, with

Mr. Farhana Afroze Runa, A.A.G, with,

Mr. Md. Abdul Aziz Masud, A.A.G, with

Mr. Md. Shamim Khan, A.A.G.

... For the State

Judgment on 20th February, 2024

S M Kuddus Zaman, J:

By this Rule, the petitioner seeks bail.

At the time of issuance of Rule, the petitioner was enlarged on ad-interim bail.

It transpires from the materials on record that at the time of issuance of Rule the petitioner was granted ad-interim bail under section 498 of the Code of Criminal Procedure and there is no allegation of misuses of the privilege of above ad-interim bail against him.

At the time of hearing of the Rule, the learned Deputy Attorney General also could not produce any material which can either show or at least suggest that after getting released on bail the accused-petitioner has misused the privilege of the same in any manner.

In such view of above materials on record, we are inclined to confirm the ad-interim bail of the accused-petitioner.

Accordingly, the Rule is made Absolute.

The ad-interim bail was granted at the time of issuance of the Rule to accused-petitioner **Mehedi** is hereby confirmed.

The learned Judge of the Court below is at liberty to cancel the bail of the petitioner if he misuses the privilege of bail in any manner whatsoever.

Office is directed to communicate the order at once.

Md. Ali Reza, J:

I agree.

Md. Masudur Rahman
Bench Officer.